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Provision of March 13, 2025
Register of Provisions
n. 156 of March 13, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018 n. 101, containing
provisions for the adaptation of the national
legislation to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation n. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With the complaint of March 18, 2023, Mr. XX
complained about receiving an unwanted
communication via WhatsApp from Carlo De
Andreis Bessone, owner of the real estate agency
Immosanremo (hereinafter "Immosanremo" and "Agency").
This communication, sent for the promotion of
the real estate intermediation services offered by
the aforementioned Immosanremo Agency, indicated Realmaps S.r.l.
(hereinafter also "Realmaps" and "supplier") as the

entity from which the complainant's data would have been acquired as allegedly "consented." The
company Realmaps was the subject of a separate
investigation, conducted in April 2024, which allowed
the Authority to ascertain various critical issues
regarding the processing of personal data
intended for real estate agencies for marketing purposes
(provision n. 11 of January 16, 2025, currently being published).
Considering that, from what emerged in the documents,
Immosanremo is included among the real estate agencies
to which Realmaps would have provided the data for promotional purposes, on May 14, 2024, the

Office

formulated a request for information (prot. n. 58472/24), pursuant to Article 157 of the Code, aimed mainly at clarifying the relationships with the aforementioned supplier and understanding the compliance measures regarding the protection of personal data that the Agency has implemented concerning the acquired lists.

In a communication dated May 31, 2024, received by the Authority on June 2, 2024, Immosanremo provided a response to the aforementioned request for information and stated that it had relied on the guarantees

advertised by Realmaps on its website (<https://www.realmaps.it>) regarding the data to be purchased, with particular reference to the “prior acquisition of the necessary consents for communication to third parties.” Relying “on the supplier's competence, and acting in complete good faith regarding the origin of the data,” the Agency signed three separate supply contracts with Realmaps, copies of which were attached, on the dates of October 10, 2022, November 9, 2023, and March 12, 2024. In these contracts, the public nature of the sources from which the personal data would be obtained is reiterated (cited as “freely consultable and in the public domain”) as well as the circumstance that “the telephone data comes from an authorized database and is covered by informed consent.” “Of the contacts subject to transfer – the Agency specified – only 500

were reached by a communication via WhatsApp from Immosanremo.”

The Agency also provided the link to the privacy notice available on its website (<https://www.immosanremo.com/privacy-policy/>), specifying that it does not carry out any telemarketing activities since the processing of the personal data transferred by Realmaps “was carried out [...] through the sending of written communications,” via the WhatsApp channel. In any case, after receiving the Authority's communication, Immosanremo “promptly proceeded with the deletion of the data contained in the list of contacts transferred from its systems.”

Finally, regarding the request for measures adopted to ensure the right of opposition of the data subjects, the Agency stated that it had defined and implemented “specific procedures collected in a summary document” aimed at making the processing compliant with the regulatory provisions.

2. THE ALLEGATION OF VIOLATIONS

The Office - recalling the definition of “automated telephone marketing,” as provided by Article 2 of the “Code of conduct for telemarketing and teleselling activities” (approved by provision n. 148 of March 7, 2024, doc. web

n. 9993808, at www.gdpd.it, and published in the Official Gazette n. 73 of March 27, 2024) (hereinafter "Code of Conduct") - deemed that the communications sent by the Agency via WhatsApp have a promotional purpose as they aim to offer the real estate intermediation service provided by Immosanremo to potential sellers (in this case to Mr. Realmaps) and potential buyers. Therefore, within the described promotional activity, Immosanremo is to be considered the data controller, pursuant to Article 4 of the Regulation, having effectively determined the purpose for which the processing was carried out (promotion of its services) and the channel used for that purpose. (WhatsApp).

With note dated June 13, 2024 (prot. no. 0072003/24), the Agency was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures referred to in Article 58, paragraph 2, of the Regulation, recognizing Immosanremo's responsibility for the alleged violation of the following provisions of the Regulation:

- Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 14 of the Regulation and Article 130, paragraphs 1 and 2, of the Code for failing to verify or document the lawfulness of the data acquired from the supplier and subsequently used for marketing purposes (information and consent);
- Articles 12 and 15 of the Regulation as the response to requests from data subjects regarding the processing of their personal data is subject to the necessary consultation with Realmaps, which holds such information, resulting in a potential delay in the fulfillment of the aforementioned requests and incomplete satisfaction on the part of the requester;
- Articles 5, paragraph 2, 24, and 25 of the Regulation for failing to demonstrate compliance with obligations regarding personal data protection.

3. DEFENSIVE OBSERVATIONS AND LEGAL ASSESSMENTS OF THE AUTHORITY

On July 12, 2024, Immosanremo submitted its defensive memoranda in which it first raised the applicability, to the case at hand, of the provisions contained in the "Code of Conduct for Telemarketing and Teleselling" referenced by the Office in the initiation of the procedure. According to Immosanremo, the aforementioned Code of Conduct cannot be considered applicable as its approval (March 7, 2024) and publication in the Official Gazette (March 24, 2024) occurred after the time when the complainant received the unwanted message (March 17, 2023). Therefore, "according to the well-known general principle of non-retroactivity, the citizen is obliged to behave in the manner provided by law only after its entry into force." The real estate agency emphasized that, based on Article 1 of the aforementioned Code of Conduct, its application "excludes promotions in apps and digital advertising [...] as well as all modes of contact developed through channels other than the telephone, such as, for example, the SMS channel [...]". It also considered that "the sending of promotional communications regarding its services via WhatsApp cannot fall within the definition of automated telephone marketing"; this is because "Immosanremo did not carry out personal data processing activities through the telephone channel, but instead used alternative communication technologies, such as messaging (chat) operated through the WhatsApp application."

Regarding the other contested aspects by the Office, Immosanremo produced a copy of the exchange with Realmaps concerning the data transferred by the latter and emphasized that it had obtained confirmation from the cited supplier regarding the lawfulness of the processing as well as the indication of the email address (specifically of Realmaps' DPO) to which requests from data subjects should be sent. This documentation, according to the real estate agency, would demonstrate how "Mr. De Andreis Besson did not simply rely on contractual guarantees but actively requested Realmaps to provide evidence regarding the origin of the transferred data and the consent of the data subjects to receive marketing communications from third parties." In its defense, the real estate agency

highlighted that "on July 2, 2024 [...], through its trusted legal representatives, it invited and warned Realmaps to provide compensation for all damages suffered and to hold Immosanremo harmless and indemnified in the event that a monetary penalty were imposed by the Authority." Finally, the Agency, a sole proprietorship, "with a reduced turnover compared to capital companies," has "foreseen and implemented a specific management procedure in case of the exercise of the rights of data subjects," illustrating all the phases for its complete fulfillment.

Based on the statements made by Immosanremo, for which the declarant is responsible pursuant to Article 168 of the Code, and considering the documentation produced in the defense phase, it is deemed appropriate to confirm the violations identified in the notice of contestation.

First of all, it should be noted that Codes of Conduct, governed by Articles 40 and 41 of the Regulation, together with the certification institution (Articles 42 and 43 of the Regulation), fall within the aids for accountability offered by European legislation to data controllers. In particular, Recital No. 98 of the Regulation provides that Codes of Conduct can calibrate the obligations of controllers and processors, taking into due account the risks potentially arising for the rights and freedoms of data subjects from specific processing activities. The "Code of Conduct for Telemarketing and Teleselling" aims to identify the measures and processing methods to be implemented to ensure an adequate implementation of the principles of lawfulness, fairness, and transparency, as set out in Article 5 of the Regulation, in the context of promotional activities carried out through the use of the telephone channel (see "Premises" letter d of the Code of Conduct).

In this context, the peremptory nature of the aforementioned Code cannot be invoked since it contains non-binding provisions but, as mentioned, pertains to rules of good conduct inspired by principles of lawfulness and transparency in the exercise of accountability of controllers in the telemarketing sector.

This duly clarified, it is represented that the promotional activity carried out by the Agency through **WhatsApp falls within the scope of Title X of the Code that regulates the sector of "Electronic Communications." The transmission of promotional messages via the electronic communication channel WhatsApp is subject to the prior informed consent of the interested parties. Therefore, given the promotional purpose highlighted above and the electronic means through which the communications were conveyed (specifically via WhatsApp, as represented by the Agency regarding all contacts acquired from Realmaps), a legitimate processing would have required the prior free, specific, unequivocal, and informed consent of the interested parties (so-called opt-in), (pursuant to Article 130, paragraphs 1 and 2 of the Code). It follows that in the absence of such a legal basis, it is not possible to carry out promotional communications even if the personal data are taken from public registers, lists, websites, acts, or documents known or knowable by anyone (see, in this regard, Guidelines on promotional activities and combating spam - July 4, 2013, provision no. 330, web doc no. 2542348, at www.gpdp.it).**

From the evidence produced in the proceedings, it does not appear that Immosanremo, the data controller, has provided documentation proving the existence of the legality requirements for the personal data acquired from Realmaps based on the guarantees offered by the latter in the contractual context. In fact, relying on such contractual guarantees and trusting in the positive outcomes of the established collaboration, there would have been, according to the Agency, no need to exercise a control power over the acquired lists and the legality of the contacts transferred as they were allegedly "consented." This gap cannot even be overcome by the documentation produced in the defense memorandum as it merely confirms the absence of preventive checks on the acquired lists: indeed, from the exchange that took place with Realmaps - of which, as mentioned, evidence has been provided - it clearly emerges that the requests for information regarding the consents of the interested parties came after the phase of providing the personal data; in other words, the real estate agency would have approached Realmaps to obtain specific information regarding the processing of the transferred personal data only after receiving reports/complaints from the interested parties, thus violating the obligation of the data controller to verify in advance the legality of the lists.

**In particular, the Agency did not verify, and therefore did not prove, the provision of information to the

interested parties by the original data controller who would have acquired the data, pursuant to Article 14 of the Regulation; similarly, it was not proven whether the alleged consent to the communication to third parties (including Immosanremo) for marketing purposes was granted by the interested parties nor, therefore, was it verified whether such authorization met the requirements of freedom and specificity (as per Article 4, point 11, of the Regulation), with inevitable repercussions on the legitimacy of the promotional activity carried out by the real estate agency itself.**

Therefore, since the acquisition of prior free and specific consent for marketing is not proven, the processing in question appears to have been carried out in the absence of the prerequisites for the legitimacy of the promotional activity. In conclusion, the described processing has resulted in the execution of promotional communications without the prior informed consent of the interested parties since the Agency has not produced evidential findings to document its acquisition.

Consequently, it is deemed confirmed that there has been a violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 14 of the Regulation and Article 130, paragraphs 1 and 2, of the Code, not only in relation to the case of the complaint but in the overall processing carried out by Immosanremo concerning the personal data acquired from Realmaps, of which 500 telephone numbers were contacted.

It should also be noted that the deletion of the data transferred by Realmaps and the initiatives undertaken to fulfill the requests for the exercise of rights were operations carried out by Immosanremo only after the investigation initiated by the Authority. Moreover, from the evidence produced in the proceedings, the commendable measures implemented by the Agency do not clarify the methods put in place to ensure the right of opposition of the interested parties, given that Immosanremo has not even demonstrated that it adopted suitable and concrete measures to prevent further future processing (for example, the inclusion of names in a blacklist and any data retention periods).

In any case, regarding the processing already carried out, which is relevant for the assessment of the investigation in question, Immosanremo, in response to the requests of the interested parties, adopted a procedure that is not functional to an adequate management of the requests for the exercise of rights and to a timely fulfillment "without unjustified delay" of the requests of the interested parties (pursuant to Article 12, paragraph 3, of the Regulation). In fact, Immosanremo was required to engage with Realmaps, which holds the information on the origin of the data and on any consent to communication to third parties for promotional purposes. This step to Realmaps was deemed necessary by the Agency to obtain information on the data but inevitably resulted in a significant distraction of time and a potential delay in satisfying the requests made. Therefore, it is deemed necessary to confirm the violation of Articles 12 and 15 of the Regulation.

The aforementioned processing presents a picture of inadequate control and non-compliance with

Regulations on the Protection of Personal Data

The initiatives undertaken by the Agency following the request for information from the Office are not sufficient to reduce the level of responsibility that the data controller must constantly exercise during processing activities. In the absence of adequate controls throughout the entire processing chain (from collection to the execution of the promotional campaign), marketing activities violate Articles 5, paragraph 2, and 24 of the Regulation, which frame the responsibilities of the data controller in a perspective of necessary enhancement of the principle of accountability aimed at demonstrating compliance with personal data protection obligations, also taking into account the principle of privacy by design (Article 25 of the Regulation). It should be noted that even under the previous state legislation, but even more so with the introduction of the aforementioned principles in the context of unified legislation, the provision of a contractual indemnity clause cannot exempt the data controller from carrying out the necessary activities to demonstrate that the processing has been conducted in compliance with the principles of lawfulness, transparency, and fairness from which the provisions regarding legal basis and information derive.

****4. CONCLUSIONS****

In light of the arguments set forth in point 3 of this provision, while acknowledging the initiatives undertaken by the Company following the Authority's request for information regarding the processing already carried out, the contested violations are deemed confirmed, and it is necessary to:

- Pursuant to Article 58, paragraph 2, letter d) of the Regulation, order Immosanremo, should it intend to direct promotional activities in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through adequate random checks, that personal data are processed in full compliance with the provisions in this regard (prior acquisition of free, specific, unequivocal, documented, and informed consent from the data subjects for the sending of commercial communications) (Articles 6, 7, and 14 of the Regulation);
- Pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the adoption of appropriate technical and organizational measures to keep track of refusals expressed by data subjects as well as any changes in their wishes (Articles 17 and 21 of the Regulation).

Finally, with regard to the processing already carried out and considering the violations identified above, it is believed that the conditions exist for the application of an administrative monetary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

****5. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE MONETARY SANCTION****

Based on the above, various provisions of the Regulation and the Code have been violated in relation to connected processing carried out by Immosanremo, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or connected processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation, resulting in the application of only the sanction provided for by Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, sets the maximum penalty at the sum of 20 million euros or, for enterprises, at 4% of the total worldwide annual turnover of the previous financial year, where higher, specifying the methods of quantification of the aforementioned sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements listed in paragraph 2 to be evaluated when quantifying the relevant amount.

As aggravating circumstances to be considered in this case, the following should be taken into account:

1. The number of individuals involved in the processing for whom the Company has not been able to demonstrate the lawfulness requirements for commercial activity (such as information and consent): 500 are the total numbers affected by the promotional contacts (Article 83, paragraph 2, letter a of the Regulation);
2. The severity of the violations detected, particularly with regard to the absence of random checks on the numbers to be contacted acquired from the supplier as well as the inadequate management of the rights of access and opposition of the data subjects (Article 83, paragraph 2, letter a of the Regulation);
3. The negligent nature of the conduct, given that the rules for the protection of personal data were ignored by the data controller until the intervention of the Authority (Article 83, paragraph 2, letter b of the Regulation);
4. The inconsistency of the conduct with the substantial regulatory activity of the Authority in the field of marketing, particularly with regard to compliance with consent (Article 83, paragraph 2, letter k of the Regulation).

As mitigating factors, it is considered that the following can be taken into account:

1. The absence of previous proceedings initiated against the Agency (Article 83, paragraph 2, letter e of the Regulation);

2. The timely deletion of the lists acquired from Realmaps with which the Agency has interrupted... the commercial relationship, as well as the adoption of some corrective measures, some of which were initiated after the intervention of the Authority (art. 83, par. 2, lett. f of the Regulation);
3. the degree of cooperation in the interaction with the supervisory Authority (art. 83, par. 2, lett. f of the Regulation);
4. the nature of the data processed, consisting of common personal and contact data (art. 83, par. 2, lett. g of the Regulation);
5. the overall assessment of the economic capacity of Immosanremo, which meets the requirements of "individual enterprise," with particular reference to the "Income Model for Individuals," achieved by self-employed workers with VAT number, for the tax period 2022 (art. 83, par. 2, lett. k of the Regulation).

In a comprehensive perspective of necessary balance between the rights of the data subjects and the freedom of enterprise, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction.

Therefore, it is believed that - based on the complex of the elements mentioned above - an administrative sanction of payment of an amount of €3,000.00 (three thousand/00) should be applied to Immosanremo, equal to 0.015% of the maximum administrative fine of €20 million.

In this case, it is also believed that the accessory sanction of publication on the website of the Authority of this provision, as provided for by art. 166, par. 7, of the Code and art. 16 of the Regulation of the Authority no. 1/2019, should be applied.

In implementation of the principles set forth in art. 83 of the Regulation, the imposition of this accessory sanction appears proportionate in relation to the severity and particular disvalue of the conduct subject to censure, with specific reference to the absence of adequate controls on the lists acquired from third parties and on the related obligations of information and consent of the data subjects for the processing of data for promotional purposes. The conduct of the Company has revealed a culpable and persistent insensitivity to the issue of personal data protection until the intervention of the Authority.

It is reminded that, pursuant to art. 170 of the Code, anyone who, being obliged, does not comply with this prohibition order on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in art. 83, par. 5, lett. e) of the Regulation is also applied in administrative proceedings.

Finally, the prerequisites referred to in art. 17 of Regulation no. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, for the annotation of the violations identified herein in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, are present.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares the processing described in the terms of the motivation carried out by Immosanremo, sole proprietorship of De Andreis Bessone Carlo, with registered office at Corso Matuzia 22, 18038 Sanremo (IM), VAT number 01560870089, unlawful; consequently:

- a) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders Immosanremo, should it intend to direct promotional activity in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, also through adequate random checks, that personal data are processed in full compliance with the provisions in this matter (prior acquisition of free, specific, unequivocal, documented, as well as informed consent from the data subjects for sending commercial communications) (arts. 6, 7, and 14 of the Regulation);
- b) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders Immosanremo to adopt appropriate technical and organizational measures to keep track of refusals expressed by the data subjects as well as any changes in their will (arts. 17 and 21 of the Regulation);
- c) pursuant to art. 157 of the Code, orders the aforementioned real estate agency to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order

to implement the imposed measure; any failure to comply with what is provided in this point may result in the application of the administrative monetary sanction provided for by art. 83, par. 5, of the Regulation.

ORDERS

pursuant to art. 58, par. 2, lett. i), of the Regulation, Immosanremo, sole proprietorship of De Andreis Bessone Carlo, in the person of its legal representative, to pay the sum of €3,000.00 (three thousand, 00) as an administrative monetary sanction for the violations indicated in the motivation; it is represented that the offender, pursuant to art. 166, par. 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

ORDERS

the aforementioned real estate agency, in case of failure to settle the dispute pursuant to art. 166, par. 8, of the Code, to pay the sum of €3,000.00 (three thousand, 00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law no. 689/1981;

PROVIDES

a) pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, the publication of this measure as well as, pursuant to Article 166, paragraph 7, of the Code, the publication of this injunction order on the website of the Authority;

b) pursuant to Article 17 of the Authority's Regulation No. 1/2019, it orders the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this measure may be filed with the ordinary judicial authority, by means of a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this measure, or sixty days if the appellant resides abroad.

Rome, March 13, 2025

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE SECRETARY GENERAL

Mattei